

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 2121 of 2023

In the matter of:

Mohammad Forhadur Rahaman.

...Petitioner.

-Vs-

Present
Mr. Justice Mamnoon Rahman

Morshed Tahmina Parvin.

....Opposite party.

Mr. Md. Towfiqul Islam Khan, Adv.

...For the petitioner.

Mr. Md. Abdus Saleque, Adv.

...For the opposite party.

The 23rd January, 2024

Today is fixed for passing necessary order.

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 15.01.2023 passed by the learned District Judge, Dhaka in Family Appeal No. 199 of 2022 summarily rejecting the appeal on admission hearing, thereby affirming the earlier order dated 03.10.2022 passed by the learned 2nd Additional Assistant Judge and Family Court, Dhaka in Family Suit No. 89 of 2022 rejecting the plaintiff-father's application for visitation of minor daughter, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

I have heard the learned Advocates for the petitioner as well as opposite party. I have perused the impugned judgment and order passed by the trial court as well as lower appellate court, revisional

application, grounds taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it appears that the substantive matter relates to custody is pending before the learned Additional Assistant Judge and Family Court, 2nd Court, Dhaka being Family Suit No. 89 of 2022. It further appears that pending disposal of the said suit the present petitioner pressed an application for visiting right of the child in question. The same was rejected and on appeal the lower appellate court also affirmed the order passed by the trial court.

In course of hearing of the instant rule this court allowed the father to visit the child in the Office of the Supreme Court Legal Aid. However, it appears that the child is suffering from Trauma for which he requires counseling from a certified Clinical Psychologist. Since the substantive matter is pending before the trial court, I am of the view that justice would be done if a direction be given upon the trial court to hear and dispose of the substantive matter within a fixed period and also consider the prayer of the father after consultation with the Clinical Psychologist at least two occasions.

Accordingly, the trial court, namely the learned Additional Assistant Judge and Family Court, 2nd Court, Dhaka is directed hear and dispose of the substantive matter being Family Suit No. 89 of 2022 strictly on merit by applying its independent and judicial mind within 4(four) months from the date of receipt of the instant judgment and order without fail and without giving any adjournment to the

parties. The parties are directed to get an appointment with Mr. Zahir Uddin, Assistant Professor of Clinical Psychology, National Institute of Mental Health and Hospital (NIMH), Dhaka within a week and consult him with the child for at least two occasions. The trial court is at liberty to consider the prayer of the father for visiting the right of the child after perusing the report from the said Clinical Psychologist.

The said Family Court Judge, Dhaka is further directed to inform this court about such disposal in writing through the Registrar of the High Court Division within 7(seven) days from the date of disposal of the same.

With this observation and direction the instant rule is disposed of.

The office is directed to communicate the judgment and order with a copy of the judgment to the concerned court below at once.

(Mamnoon Rahman,J:)